

SENATE No. 2155

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission on the status of transgender people.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/24/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/10/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/10/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>3/17/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>9/2/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>9/15/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>10/2/2025</i>
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>10/28/2025</i>

SENATE No. 2155

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 2155) of Patricia D. Jehlen, Lindsay N. Sabadosa, James B. Eldridge and Joanne M. Comerford for legislation to establish a permanent commission on the status of transgender people to conduct an ongoing study of all matters concerning transgender people. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission on the status of transgender people.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 3 of the Massachusetts General Laws, as appearing in the 2022 edition, is hereby
2 amended by inserting after Section 75 the following new section:-

3 Section 76

4 (1) There is established a permanent commission on the status of transgender people
5 consisting of 20 persons as follows: 5 persons appointed by transgender-led organizations or
6 groups that directly serve, support, or advocate for transgender people in Massachusetts; 2
7 persons appointed by transgender-focused health programs at Massachusetts-based healthcare
8 centers and/or hospitals; 2 persons appointed by an organization or group that supports LGBTQ+
9 elders; 2 persons appointed by an organization or group that supports LGBTQ+ students; 2
10 person appointed by an organization or group that supports LGBTQ+ individuals with
11 homelessness or unstable housing; 1 person appointed by an organization or group that supports

LGBTQ+ people with domestic and/or intimate partner violence; 1 person appointed by an organization or group that supports LGBTQ+ incarcerated or formerly incarcerated people; 1 person appointed by an organization or group that supports LGBTQ+ sex workers; 1 person appointed by an organization or group that supports LGBTQ+ people with disabilities; 1 person appointed by an organization or group that supports LGBTQ+ individuals with immigration, seeking asylum/refugee status, or other non-citizen statuses; 1 person appointed by an antipoverty organization or group that supports LGBTQ+ individuals; and 1 person appointed by an organization or group that supports LGBTQ+ veterans. The membership of the commission shall include at least: 10 transgender persons, total; 2 transgender persons between the ages of 18-24; 2 transgender persons aged 60 or older; and 2 representatives of the mental health professions.

(2) Members of the commission shall be drawn from diverse racial, ethnic, religious, age, gender, sexual orientation and socio-economic backgrounds and shall have had experience working toward the improvement of the status of transgender people in society. Members shall also be drawn from throughout the commonwealth to ensure broad representation. Members shall be subject to the provisions of chapter 268A as they apply to special state employees. The commission shall be an independent agency of the government of the commonwealth and shall not be subject to the control of any other department or agency.

(3) (a) Members shall serve terms of three years and until their successors are appointed.

(b) Vacancies in the membership of the commission shall be filled by the original appointing authority for the balance of the unexpired term.

33 (c) appointments shall be made in consultation with transgender rights organizations.

34 Nominations shall be solicited between August 1 and September 16 of each year through an open
35 application process using a uniform application that is widely distributed throughout the state.

36 (d) The commission shall elect from among its members a chair, a vice chair, a treasurer
37 and any other officers it deems necessary.

38 (e) The members of the commission shall receive no compensation for their services, but
39 shall be reimbursed for any usual and customary expenses incurred in the performance of their
40 duties.

41 (4) The commission shall conduct an ongoing study of all matters concerning transgender
42 people. In furtherance of that responsibility, the commission shall: (a) study, review and report
43 on the status of transgender people in the commonwealth;

44 (b) inform leaders of business, education, health care, state and local governments and the
45 communications media of issues pertaining to transgender people;

46 (c) serve as a liaison between government and private interest groups concerned with
47 issues affecting transgender people;

48 (d) serve as a clearinghouse for information on issues pertaining to transgender people;

49 (e) identify and recommend qualified transgender people for appointive positions at all
50 levels of government, including boards and commissions, as the commission deems necessary
51 and appropriate;

52 (f) assess programs and practices in all state agencies as they affect transgender people,
53 as the commission deems necessary and appropriate;

(g) advise executive and legislative bodies on the effect on transgender people of proposed legislation, as the commission deems necessary and appropriate; and

(h) promote and facilitate collaboration among local transgender commissions and among transgender organizations in the state, as the commission deems necessary and appropriate.

The commission shall annually, on or before June 2, report the results of its findings and activities of the preceding year and its recommendations to the governor and to the clerks of the senate and house of representatives.

(5) The powers of the commission shall include but not be limited to the following:

(a) to use such voluntary and uncompensated services of private individuals, agencies and organizations as may from time to time be offered and needed;

(b) to recommend policies and make recommendations to agencies and officers of the state and local subdivisions of government to effectuate the purposes of subsection (3);

(c) to select an executive director and to acquire adequate staff to perform its duties, subject to appropriation;

(d) to establish and maintain such offices as it may deem necessary, subject to appropriation;

(e) to enact bylaws for its own governance;

(f) to appoint members to regional chapters of the commission; and

(g) to hold regular, public meetings and to hold fact-finding hearings and other public forums as it may deem necessary.

(6) The commission shall meet once every month. The (i) governor, (ii) speaker of the house of representatives, (iii) president of the senate and (iv) designated members of the LGBTQ+ caucus of legislators shall be invited to attend the monthly meetings on a rotating basis.

(7) (a) The commission may request from all state agencies such information and assistance as the commission may require.

(b) The commission may accept and solicit funds, including any gifts, donations, grants or bequests or any federal funds, for any of the purposes of this section. Such funds shall be deposited in a separate account with the state treasurer, be received by said treasurer on behalf of the commonwealth, and be expended by the commission in accordance with law.